

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Opoku-Agyemang	Team: Team # 5	CCRB Case #: 201112102	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 09/20/2011 7:15 AM	Location of Incident: § 87(2)(b)		18 Mo. SOL 3/20/2013		Precinct: 75
Date/Time CV Reported Wed, 09/21/2011 8:49 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 09/21/2011 8:49 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Raymond Tomins	05336	902480	WARRSEC
2. DT3 Nicholas Grenier	02006	932744	WARRSEC
3. DT3 Richard Schneider	03213	931978	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Santiago Frances	03612	906270	075 DET
2. POM John Matzen	08804	938964	WARRSEC
3. DT3 Joseph Mucciaccio	07932	924219	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Richard Schneider	Force: Det. Richard Schneider used physical force against § 87(2)(b)	A . Exonerated
B . SGT Raymond Tomins	Abuse: Sgt. Raymond Tomins drew his gun.	B . Exonerated
C . DT3 Richard Schneider	Discourtesy: Det. Richard Schneider spoke obscenely and/or rudely to § 87(2)(b)	C . Unsubstantiated
D . SGT Raymond Tomins	Discourtesy: Sgt. Raymond Tomins spoke obscenely and/or rudely to § 87(2)(b)	D . Unsubstantiated
E . DT3 Nicholas Grenier	Force: Det. Nicholas Grenier struck § 87(2)(b) with a baton.	E . Exonerated
F . DT3 Richard Schneider	Force: Det. Richard Schneider used physical force against § 87(2)(b)	F . Unsubstantiated

Case Summary

On September 21, 2011, § 87(2)(b) called the CCRB and filed a complaint in regards to the arrest of her husband, § 87(2)(b) (Encl. 3A-C). On September 27, 2011, § 87(2)(b) called IAB and filed a complaint in regards to the same incident. Her complaint was subsequently forwarded to the CCRB via IAB log # 11-44104 (Encl. 4A). § 87(2)(b) did not witness the incident that led to her complaint.

At approximately 7:15 a.m. on September 20, 2011, officers from the Warrant Section arrested § 87(2)(b) at § 87(2)(b) in Brooklyn on the basis of multiple outstanding warrants for his arrest. The following allegations resulted:

- **Allegation A – Force – Det. Richard Schneider used physical force against § 87(2)(b)**
§ 87(2)(g) It is therefore recommended that **Allegation A** be **Exonerated**.
- **Allegation B – Abuse of Authority – Sgt. Raymond Tomins drew his gun.**
§ 87(2)(g) It is therefore recommended that **Allegation B** be **Exonerated**.
- **Allegation C – Discourtesy – Det. Richard Schneider spoke obscenely and/or rudely to § 87(2)(b)**
- **Allegation D – Discourtesy – Sgt. Raymond Tomins spoke obscenely and/or rudely to § 87(2)(b)**
§ 87(2)(g) It is therefore recommended that **Allegations C** and **D** be **Unsubstantiated**.
- **Allegation E – Force – Det. Nicholas Grenier struck § 87(2)(b) with a baton.**
§ 87(2)(g) It is therefore recommended that **Allegation E** be **Exonerated**.
- **Allegation F – Force – Det. Richard Schneider used physical force against § 87(2)(b)**
§ 87(2)(g) It is therefore recommended that **Allegation F** be **Unsubstantiated**.

§ 87(2)(g)

Results of Investigation

Civilian Statement(s)

Victim: § 87(2)(b)

- § 87(2)(b)

Statement to Medical Provider

During his Correctional Health Services Intake Physical on September 22, 2012 (Encl. 5A), § 87(2)(b) reported that he had been “assaulted by police” three days prior.

On § 87(2)(b), § 87(2)(b) was taken to § 87(2)(b) (Encl. 5B-D) for § 87(2)(b)

§ 87(2)(b) He reported that he had been arrested on September 21, 2011, for missing a court date and had been “beat up” by officers.

Notice of Claim

§ 87(2)(b) filed a Notice of Claim on § 87(2)(b) (Encl. 5E). He alleged that an officer “[slammed]” him “face first on the floor” and used a baton. He reported a swollen jaw, face and shoulders and cuts and scrapes on his face, arms, and legs.

Telephone Statement

§ 87(2)(b) called the CCRB on October 4, 2011 (Encl. 5F) and provided a telephone statement. He stated that on September 20, 2011, two white male officers in plainclothes from the warrant squad, one whom he described as approximately 6’3” tall and 300 pounds, identified via the investigation as Sgt. Raymond Tomins of the Warrant Section, and the other whom he described as approximately 5’7” tall and 200 pounds, identified via the investigation as Det. Richard Schneider of the Warrant Section, went to § 87(2)(b) in Brooklyn to arrest him. During the arrest, § 87(2)(b) was complying with the officers, but one of them grabbed his arm and pulled it up. § 87(2)(b) was in pain and tried to push the arm back down. One of the officers hit § 87(2)(b) with a baton on the shoulder blades and the officers then threw him to the ground. § 87(2)(b)’s face struck the ground and his face was scratched. One of the officers placed his knee on § 87(2)(b)’s face and told him to stop resisting, but § 87(2)(b) denied that he was resisting. § 87(2)(b) was escorted to the prisoner van outside and taken to the stationhouse.

CCRB Testimony

On October 14, 2011, § 87(2)(b) was interviewed at the § 87(2)(b) at Rikers Island (Encl. 5G-J). He testified that, at approximately 7:15 a.m. on September 20, 2011, he was in the basement of § 87(2)(b) in Brooklyn about to get dressed to go to work. § 87(2)(b) was wearing boxers and a jersey at the time. § 87(2)(b) explained that § 87(2)(b) was a public assistance house and that he kept his clothes stored in the basement. He heard someone knocking on the first floor door and some people coming into the house asking for him. § 87(2)(b) heard one of the other individuals who resided in the house inform the officers that § 87(2)(b) was in the basement. § 87(2)(b) was aware that there was a warrant out for his arrest but stated that he did not have any idea who was asking for him and was afraid. Therefore, § 87(2)(b) set out to leave the basement through the door leading from the basement to the backyard. § 87(2)(b) then saw a plainclothes male officer, whom he described as an approximately 5’8” tall, 190 pound white male in his 30s with a stocky build and short brown hair, identified via the investigation as Det. Schneider, coming down the stairs that led from the first floor to the basement.

Before § 87(2)(b) could reach the door to the backyard, Det. Schneider took out a baton and ran towards him. Det. Schneider reached § 87(2)(b) grabbed his jersey around the arms and pulling him down to the ground. § 87(2)(b) landed on his stomach with the right side of his face against the floor and bit the right side of his tongue. § 87(2)(b) scratched the right side of his face, his right shoulder, and right knee when he landed. Det. Schneider placed his knee on the left side of § 87(2)(b)’s face, between his neck and his jaw, and pressed down. At the same time, a second male, whom he described as an approximately 6’3” tall, 225 pound white male in his mid-30s with a heavyset but muscular build, identified via the investigation as Sgt. Tomins, came down the stairs with a gun in his hand. Sgt. Tomins put away his gun and took out a baton. § 87(2)(b) asked the officers what was going on and who were they and Det. Schneider responded “You know who we are and we are looking for you § 87(2)(b).” Upon further questioning, § 87(2)(b) stated that Det. Schneider’s response was, “You know who the fuck we are looking for, we are looking for you,” but then later stated Det. Schneider’s response as, “We are looking for you motherfucker.” § 87(2)(b) also stated that Det. Schneider told him to “get the fuck down” and Sgt. Tomins called him a “motherfucker.”

Sgt. Tomins leaned over § 87(2)(b)’s lower body and tried to handcuff him. At the same time Det.

Schneider struck § 87(2)(b) with a baton on his left shoulder about three times and told him to stop resisting. § 87(2)(b) stated that his left shoulder and arm was swollen from being hit. § 87(2)(b) admitted that he was struggling by moving his shoulders and his face, trying to move away because he was being held in an uncomfortable position, prior to being struck with the baton. The officers finished handcuffing § 87(2)(b) and escorted him outside through the first floor towards a unmarked van parked in front of the house. § 87(2)(b) asked the officers for shoes and clothes and the officers said no and continued walking towards the van. § 87(2)(b) resisted getting in the van and continued asking for his clothes. Sgt. Tomins entered the van and began pulling § 87(2)(b) backwards from his handcuffed hands. § 87(2)(b) still refused to enter the van and Det. Schneider punched him in the chest area. At this time, § 87(2)(b) a friend of § 87(2)(b) s who also resided at § 87(2)(b) brought out § 87(2)(b) s clothes.

§ 87(2)(b) continued to refuse to enter the van, but complied when he saw Det. Schneider raise the radio in his hand. § 87(2)(b) presumed that Det. Schneider was going to strike him with the baton and so entered the van and was transported to the 75th Precinct. § 87(2)(b) suffered scrapes on his face, shoulder, and knee.

Witness: § 87(2)(b)

- § 87(2)(b)

Telephone Statement

The CCRB contacted § 87(2)(b) by telephone on December 5, 2011, and she provided a telephone statement (Encl. 6A). She testified that, as of September 20, 2011, she resided at § 87(2)(b) in Brooklyn, which she described as an all-male “halfway house.” § 87(2)(b) had moved in with her boyfriend, who had resided there, approximately four months prior to September 21, 2011, but her boyfriend had moved out at the time of this incident. § 87(2)(b) stated that her living there was against the facility's regulations so she slept in a room in the basement.

At approximately 7:15 a.m. on September 20, 2011, § 87(2)(b) was awakened when two unidentified plainclothes officer, whom she described as an approximately 5'7” tall dark-skinned black male with a slim build and an approximately 5'10" tall white male with a heavyset build, entered her room. She stated that the door had been closed but had no lock on it. The individual identified himself as a police officer and showed her the photograph of an individual who she knew by the name of § 87(2)(b) § 87(2)(b) informed the officers that she knew the wife of § 87(2)(b) and knew that § 87(2)(b) was an acquaintance of her boyfriend's but stated that she did not know where he was.

A few minutes after they left, however, the two unidentified officers returned and informed § 87(2)(b) that an individual with a red beard § 87(2)(b) stated that she only knew this individual by the name § 87(2)(b) had informed them that § 87(2)(b) was a friend of § 87(2)(b) which she denied. The officers went back upstairs. After some time § 87(2)(b) went outside the house and saw approximately 4 to 5 officers placing § 87(2)(b) into a van. § 87(2)(b) did not know how or where the officers apprehended § 87(2)(b) § 87(2)(b) saw a few scratches on the right side of § 87(2)(b) s face and saw that he was bleeding from these scratches. After he was placed into the van, § 87(2)(b) heard § 87(2)(b) screaming repeatedly, “you are hurting me” but she never saw any force being used against him by the officers.

Attempts to Contact Civilians

After she provided her telephone statement, the CCRB contacted § 87(2)(b) by telephone on December 8, 2011, and an interview appointment was scheduled for December 13, 2011. On December 13, 2011, § 87(2)(b)

§ 87(2)(b) failed to appear for her interview appointment and did not call to cancel or reschedule. On December 14, 2011, the CCRB contacted § 87(2)(b) again and she stated that she was too busy to come to the CCRB to provide a sworn statement.

The CCRB contacted § 87(2)(b) on December 5, 2011. She stated that she knew of three potential witness to the incident but only knew their first names or nicknames, § 87(2)(b) and § 87(2)(b) and did not have any contact information for them. She stated that all three were residents at § 87(2)(b) at the time of the incident. A Lexis-Nexis on December 7, 2011, search provided listings for 69 individuals, including § 87(2)(b) who had resided in § 87(2)(b). One of these individuals was named § 87(2)(b) but none had the first name § 87(2)(b). Letters were sent to § 87(2)(b) address to § 87(2)(b) and § 87(2)(b) on December 7, 2012, and December 13, 2012. These letters, however, were returned to the CCRB by USPS with the note, "Not deliverable as addressed."

NYPD Statements:

Subject Officer: SGT. RAYMOND TOMINS

- Sgt. Tomins, § 87(2)(b) old at the time of the incident, is a § 87(2)(b) white male with brown hair and hazel eyes.
- Sgt. Tomins worked from 4:15 a.m. to 12:50 p.m. on September 20, 2011. He was in plainclothes and assigned as the Supervisor of a Warrant Enforcement Squad. He was in unmarked van #§ 87(2)(b) with Det. Nicholas Grenier, Det. Joseph Mucciaccio, Det. Richard Schneider, and PO John Matzen.

Memo Book

Sgt. Tomins' memo book entries from September 20, 2011 (Encl. 7A-C) note that at 7:40 a.m. he went to § 87(2)(b) in regards to warrant #§ 87(2)(b). He was also wanted by the 75th Precinct for an I-Card in connection to an assault and for bail jumping. The perpetrator jumped out of a 2nd floor window and hid in the basement of the house next-door.

CCRB Testimony

On January 6, 2012, Sgt. Tomins was interviewed at the CCRB (Encl. 7D-G). He testified that, at approximately 7:40 a.m. on September 20, 2011, he, Det. Nicholas Grenier, Det. Richard Schneider, Det. Joseph Mucciaccio, and PO John Matzen went to § 87(2)(b) in Brooklyn to apprehend an individual named § 87(2)(b) who they had information resided at the location on the basis of an arrest warrant for felony robbery. In addition to the felony warrant, Sgt. Tomins and his team were aware that § 87(2)(b) was also wanted for two other warrants and in connection to open complaints of assault and bail jumping. When they arrived at the location, Sgt. Tomins realized that it was a boarding house where individuals transitioning from prison or rehab to normal life stay for a temporary period of time.

When the officers entered the house, they spoke to several occupants. The occupants on the first floor informed Sgt. Tomins that § 87(2)(b) resided in the house and one of them, an Asian male, informed Sgt. Tomins that believed that § 87(2)(b) was in the basement. Sgt. Tomins sent some of the officers who were with him, he did not recall which ones specifically, to check the basement for § 87(2)(b). The officers returned and informed Sgt. Tomins that they had not found § 87(2)(b) in the basement. At this time the same individual who had informed Sgt. Tomins that § 87(2)(b) was in the basement, changed his story and informed him that he believed that § 87(2)(b) was on the § 87(2)(b) floor and specified his room. Sgt. § 87(2)(b) [sic] stated that they did not obtain the names or contact information of any of the individuals they spoke to inside § 87(2)(b) because they were trying to move as quickly as possible to apprehend § 87(2)(b). He stated that every individual he spoke with was a male and saw no females at any point during this incident.

Sgt. Tomins and two of the officers who were with him, he did not recall which ones specifically, went to the § 87(2)(b) floor to look for § 87(2)(b). When they reached the 2nd floor, Sgt. Tomins saw that the door § 87(2)(b)'s room was open. He heard the barking of a dog coming from inside the room. Sgt. Tomins peeked into the room and saw that the dog was chained in the corner. Sgt. Tomins searched the room briefly and did not find § 87(2)(b). He noticed, however, that the rear window, leading into the backyard, was fully open. This led Sgt. Tomins to suspect that § 87(2)(b) may have jumped out of the window and into the backyard in order to escape. Sgt. Tomins, Det. Grenier, Det. Schneider, Det. Mucciaccio, and PO Matzen all went to the backyard of § 87(2)(b) to search for § 87(2)(b). Two of the officers, Sgt. Tomins could not recall which ones, went towards the house to the right of § 87(2)(b). Det. Schneider went to the house to the left of § 87(2)(b) while Sgt. Tomins and the remaining officer, he didn't recall which one it was, searched the backyard of § 87(2)(b).

Shortly after they split up, Sgt. Tomins heard Det. Schneider state that he had found § 87(2)(b) in the backyard of the house to the left of § 87(2)(b) and heard him instructing § 87(2)(b) to "step out...get out of there." Sgt. Tomins, from where he was standing, could not see Det. Schneider or § 87(2)(b) because of the fence dividing the two yards. Sgt. Tomins climbed over the fence separating the backyards of the two house. Sgt. Tomins saw that § 87(2)(b) appeared to have been hiding in the sunken stairwell that led down from the backyard to the doorway of the basement of the house. When Sgt. Tomins first saw § 87(2)(b) he was walking up the stairwell with his hands up. Sgt. Tomins stated that he had seen photographs of § 87(2)(b) and he immediately recognized the individual he saw as § 87(2)(b). As § 87(2)(b) stepped into the backyard, Sgt. Tomins grabbed his arm and attempted to handcuff him but § 87(2)(b) pulled his arm away and stepped away from Sgt. Tomins. At this time both Sgt. Tomins and Det. Schneider each grabbed one of § 87(2)(b)'s arms and attempted to pull both arms behind his back. § 87(2)(b) struggled with the officers by pulling his arms forward as they tried to pull it back. As they struggled with § 87(2)(b) they were joined by two more officers. Sgt. Tomins recalled the Det. Grenier was one of these two officers but could not recall who the second officer was. The other two officers also grabbed his arms and attempted to pull them back. As they struggled, § 87(2)(b) Sgt. Tomins, and the other officers fell to the cemented ground. § 87(2)(b) placed his arms underneath his body, laid on top of them, and refused to release them. It took the officers approximately two minutes to pull his arms out from underneath his body and cuff them.

Sgt. Tomins stated that the only force used against § 87(2)(b) while he was on the ground, to his knowledge, was attempting to pull and twist his arms in order to free them from underneath his body. Sgt. Tomins stated that he did not see any other swing a baton or strike § 87(2)(b) with one. At no point did Sgt. Tomins draw his gun or see any other officer draw their gun. Sgt. Tomins never saw an officer place his knee or foot on § 87(2)(b)'s neck or face. Sgt. Tomins recalled having seen minor scratches on § 87(2)(b) after they handcuffed him but he did not recall where on § 87(2)(b)'s body these scratches were. Sgt. Tomins was unsure what caused the scratches. Sgt. Tomins stated that it was possible that he told § 87(2)(b) to "get the fuck down" as he approached him initially, but he did not specifically recall whether or not he did so. He did not call § 87(2)(b) a "motherfucker" and he did not recall having heard any other officer do so or speak discourteously to him in any manner.

After the officers cuffed § 87(2)(b) he stopped resisting and allowed the officers to walk him back to their van, which was parked in front of § 87(2)(b). However, once they reached the van, § 87(2)(b) stood at the door and refused to step onto the steps that led into the van. Sgt. Tomins stated that he did not specifically recall what interactions occurred at this point but simply recalled that § 87(2)(b) made it "difficult" to get him into the van. He did not recall any force having been used or threatened to be used against § 87(2)(b) at this time and did not recall any officers attempting to physically place § 87(2)(b) into the van. Sgt. Tomins did not recall an officer having attempted to pull § 87(2)(b) into the van by his handcuff or punching him. Sgt. Tomins recalled that eventually § 87(2)(b) stepped into the van under his own strength after the officers gave him several verbal commands to enter the van. After he

entered the van the officers transported § 87(2)(b) to the 75th Precinct.

Subject Officer: DET. RICHARD SCHNEIDER

- *Det. Schneider, § 87(2)(b) old at the time of the incident, is § 87(2)(b) white male with black hair and hazel eyes.*
- *Det. Schneider worked from 4:27 a.m. to 1:00 p.m. on September 20, 2011. He was in plainclothes and assigned to a Warrant Enforcement Squad. He was in unmarked van # § 87(2)(b) with Sgt. Tomins, Det. Grenier, Det. Mucciaccio, and PO Matzen.*

Memo Book

Det. Schneider's memo book entries from September 20, 2011 (Encl. 7H-J) note that at 7:40 a.m. he went to § 87(2)(b) in regards to warrant # § 87(2)(b) and assisted in the arrest of an individual.

CCRB Testimony

On February 9, 2012, Det. Schneider was interviewed at the CCRB (Encl. 7K-M). § 87(2)(g)

Det. Schneider recalled that it was Det. Grenier who informed him that § 87(2)(b) may have jumped into the backyard of § 87(2)(b) via a window. The officers went to the backyard of § 87(2)(b) and did not find § 87(2)(b) there. Some of the officers searched the backyard of the house to the right of § 87(2)(b) while Det. Schneider jumped over the fence and into the backyard of the house to the left of § 87(2)(b). Det. Schneider searched the whole yard but could not find § 87(2)(b). Det. Schneider noticed that the backdoor of the house had what he described as a roofed-enclosure with walls on three sides that led from the backyard to the basement door. The enclosure, which Det. Schneider described as being approximately 5 to 6 feet wide and 8 feet high, resembled a storage shed but had no wall or door separating it from the rest of the backyard. Det. Schneider approached the backdoor through the enclosure to see if § 87(2)(b) had potentially broken into or entered the house. Det. Schneider tapped the door with baton. As Det. Schneider was tapping the door, he noticed that § 87(2)(b) was hiding behind him in a corner of the enclosed space. Det. Schneider turned around raised his baton over his head, and ordered § 87(2)(b) to get out of his hiding spot. § 87(2)(b) complied and stepped into the backyard. Det. Schneider stated that he did this because he was alone and wanted § 87(2)(b) to step into an open area so that he could handcuff him. Det. Schneider denied having told § 87(2)(b) to "get the fuck down" or calling him a "motherfucker" and he did not hear any other officers make these statements or use any other profanities toward § 87(2)(b).

As § 87(2)(b) stepped into the backyard, Det. Schneider dropped his baton and grabbed him. At this time Sgt. Tomins jumped over the fence that separated the backyard of § 87(2)(b) from the backyard where Det. Schneider and § 87(2)(b) were. Sgt. Tomins also grabbed § 87(2)(b). Det. Schneider and Sgt. Tomins attempted to pull § 87(2)(b)'s arms behind his back. § 87(2)(b) was "not being violent" but he resisted by stiffening his arms and refusing to let the officers pull them behind his back. During the struggle to pull his arms, § 87(2)(b), Det. Schneider, and Sgt. Tomins fell to the ground. Det. Schneider stated that it was not his intention to push § 87(2)(b) to the ground and believed that the fall was incidental. Once on the ground § 87(2)(b) briefly continued to refuse to allow the officers to pull his arms behind his back but Det. Schneider and Sgt. Tomins quickly gained control of § 87(2)(b)'s arms and handcuffed him. Det. Schneider did not hit § 87(2)(b) while he was on the ground and did not see any other officer do so. Det. Schneider stated that he at no point swung his baton at § 87(2)(b) or struck him with it. He did not recall having seen any other officer beside himself with a baton in their hand or strike § 87(2)(b) with a baton. He did not see Sgt. Tomins or any other officer with their gun drawn during this incident.

Det. Schneider and Sgt. Tomins brought § 87(2)(b) out to the van, which was parked in front of § 87(2)(b). § 87(2)(b) refused to enter the van when the officers told him to enter. However, after a few minutes of talking to him, § 87(2)(b) agreed to enter the van under his own strength. Det. Schneider did not punch § 87(2)(b) in the chest and he did not see any other officers do so or use any other force in an attempt to get § 87(2)(b) into the van. Det. Schneider did not see an officer raise his radio to strike § 87(2)(b) or threaten to do so and denied having done so himself.

Subject Officer: DET. NICHOLAS GRENIER

- Det. Grenier, § 87(2)(b) old at the time of the incident, is a § 87(2)(b) white male with brown hair and brown eyes.
- Det. Grenier worked from 4:27 a.m. to 3:45 p.m. on September 20, 2011. He was in plainclothes and assigned to a Warrant Enforcement Squad. He was in unmarked van # § 87(2)(b) with Sgt. Tomins, Det. Schneider, Det. Mucciaccio, and PO Matzen.

Memo Book

Det. Grenier's memo book entries from September 20, 2011 (Encl. 7Z-BB) note that at 7:40 a.m. he went to § 87(2)(b) in regards to warrant # § 87(2)(b). The suspect jumped out of a second story window.

Arrest Report

Warrant # § 87(2)(b) and Investigative Data

The Arrest Report filed by Det. Grenier for § 87(2)(b)'s arrest (Encl. 7CC-EE) indicates that he was arrested on the basis of a Kings County indictment, a Kings County Supreme Court warrant, a Kings County Criminal Court warrant, and a Queens Criminal Court warrant. It notes that a baton was used during the arrest to restrain or control § 87(2)(b).

The Warrant Investigative Data for warrant # § 87(2)(b) (Encl. 7FF-HH), notes that § 87(2)(b) was wanted on a bench warrant for robbery in the 1st degree (PL 160.15) in regards to Case # § 87(2)(b). His address was listed as § 87(2)(b) in Brooklyn. The investigative notes indicate that officers had made previous visits to § 87(2)(b) but had been informed that § 87(2)(b) had not been seen there for over a year. The notes indicate that § 87(2)(b) was the subject of two further warrants, § 87(2)(b) and § 87(2)(b) an I-Card for assault in the third degree, and § 87(2)(b).

CCRB Testimony

On March 15, 2012, Det. Grenier was interviewed at the CCRB (Encl. 7JJ-LL). § 87(2)(g)

Det. Grenier testified that, once the officers found § 87(2)(b)'s bedroom empty with the window to the backyard open, all of them, except Det. Mucciaccio, ran down to the backyard behind § 87(2)(b). Det. Grenier and PO Matzen fanned out to the right side of the backyard, while Det. Schneider and Sgt. Tomins fanned out to the left. Both groups of officers checked the adjacent backyards as well. After a short time Det. Grenier heard Det. Schneider and Sgt. Tomins shout out that they had located § 87(2)(b). Det. Grenier and PO Matzen rushed over to them, and found them struggling with § 87(2)(b) in the adjacent backyard. § 87(2)(b) was standing up while struggling with Det. Schneider and Sgt. Tomins. § 87(2)(b) was screaming and flailing in an attempt to break away from the officers. Det. Schneider and Sgt. Tomins were attempting to control his arms and handcuff § 87(2)(b). Det. Grenier struck § 87(2)(b) twice in the legs with his asp in an effort to gain compliance, but the blows did not bring § 87(2)(b).

§ 87(2)(b) down to the ground. Eventually the three officers were able to push § 87(2)(b) to the ground and handcuff him. Once § 87(2)(b) was down and handcuffed, none of the officers struck him again. The struggle lasted approximately two and a half minutes. During this struggle, none of the officers drew their guns, and none of them used any profanity.

The officers escorted § 87(2)(b) back to the van for transport. He physically resisted the officers, and repeatedly told them that he would not go with them. Det. Grenier initially stated that § 87(2)(b) had to be “forced” into the van, but when asked what specific actions were taken, he stated that the officers sat § 87(2)(b) down on the step of the van and persuaded him that resistance was useless. When asked if § 87(2)(b) then entered the van on his own power, Det. Grenier stated that he did not recall. § 87(2)(b) was brought to the 75th Precinct stationhouse, where Det. Grenier noticed that he had a scrape above one of his eyebrows.

Witness Officer: PO JOHN MATZEN

- PO Matzen, § 87(2)(b) old at the time of the incident, is a § 87(2)(b) white male with brown hair and brown eyes.
- PO Matzen worked from 4:27 a.m. to 1:00 p.m. on September 20, 2011. He was in plainclothes and assigned to a Warrant Enforcement Squad. He was in unmarked van #§ 87(2)(b) with Sgt. Tomins, Det. Grenier, Det. Mucciaccio and Det. Schneider.

Memo Book

PO Matzen’s memo book entries from September 20, 2011 (Encl. 7T-V) note that at 7:40 a.m. he went to § 87(2)(b) in regards to warrant #§ 87(2)(b) and assisted in the arrest of an individual.

CCRB Testimony

On February 9, 2012, PO Matzen was interviewed at the CCRB (Encl. 7W-Y). PO Matzen testified that, when the officers arrived at § 87(2)(b) he was assigned to remain in front of the house to maintain perimeter security. Approximately 5 to 10 minutes after his partners had entered the house, Det. Grenier came out and informed him that they believed that § 87(2)(b) may have gone out of the house through a back window. PO Matzen and Det. Grenier went to the back of the house. PO Matzen jumped over a fence in the backyard of § 87(2)(b) and into the backyard of the adjacent house. As he was searching the backyard, PO Matzen heard the voice of Det. Schneider coming from the direction of § 87(2)(b) shouting, “Come out, Come out.” PO Matzen jumped back over the fence into the backyard of § 87(2)(b). When PO Matzen looked over the brick wall that separated the backyard of § 87(2)(b) from the house on the other side, he saw Sgt. Tomins and Det. Schneider struggling with § 87(2)(b) on the ground in the backyard. § 87(2)(b) was lying on his chest on the ground with his arms underneath his body. The two officers were attempting to pull his arms out and repeatedly ordered him to put his arms behind his back. As the officers attempted to pull his arms, § 87(2)(b) would pull them tighter against his chest. Det. Grenier jumped over the brick wall to assist Det. Schneider and Sgt. Tomins. The three officers managed to pull out § 87(2)(b)’s arms and handcuff him. PO Matzen did not jump over the fence and was never physically involved in the apprehension of § 87(2)(b). PO Matzen did not see any of the officers who were involved in apprehending § 87(2)(b) with a gun in their hand. He never heard any officer tell § 87(2)(b) to “Get the fuck down,” call him a “motherfucker” or use any other curse words during this incident. PO Matzen did not see an officer strike § 87(2)(b) with a baton.

After handcuffing § 87(2)(b) Det. Schneider and Sgt. Tomins walked him to the van parked in front of § 87(2)(b). PO Matzen did not see any injuries on § 87(2)(b) and did not hear § 87(2)(b) complain of any injuries. § 87(2)(b) screamed repeatedly that he did not want to go into the prisoner van but when he was instructed to do so, he stepped into the van under his own strength. PO Matzen did not see § 87(2)(b) physically refuse to enter the van and he did not see any officers attempt to force § 87(2)(b) into the van or punch him at the van. PO Matzen did not see an officer raise his radio to strike

§ 87(2)(b)

Witness Officer: DET. JOSEPH MUCCIACCIO

- Det. Mucciaccio, § 87(2)(b) old at the time of the incident, is a § 87(2)(b) white male with black hair and brown eyes and glasses.
- Det. Mucciaccio worked from 4:27 a.m. to 1:00 p.m. on September 20, 2011. He was in plainclothes and assigned to a Warrant Enforcement Squad. He was in unmarked van # § 87(2)(b) with Sgt. Tomins, Det. Grenier, Det. Schneider, and PO Matzen.

Memo Book

Det. Mucciaccio's memo book entries from September 20, 2011 (Encl. 7N-Q) note that at 7:40 a.m. he went to § 87(2)(b) in regards to warrant # § 87(2)(b) and assisted in the arrest of § 87(2)(b)

CCRB Testimony

On February 9, 2012, Det. Mucciaccio was interviewed at the CCRB (Encl. 7R-S). § 87(2)(g)

Det. Mucciaccio testified that, when the other officers went to the backyard to look for § 87(2)(b) he went to the front door of the house to the right of § 87(2)(b). He spoke with the occupants, who allowed him to enter the house in order to gain access to the backyard to look for § 87(2)(b). As Det. Mucciaccio was walking through the house, he received a radio call for one of the other officers informing him that § 87(2)(b) had been found and apprehended already. Det. Mucciaccio exited the house and went back outside, where he saw some of the other officers walking § 87(2)(b) to the van. § 87(2)(b) was screaming but was not physically resisting. § 87(2)(b) verbally refused to enter the van because he wanted new clothes. Det. Mucciaccio recalled that § 87(2)(b) was not "fully clothed" but could not recall specifically in what manner. He believed that in his haste to escape, § 87(2)(b) had not clothed himself fully. A resident brought out clothing for § 87(2)(b) and § 87(2)(b) calmed down and entered the van. Det. Mucciaccio never saw an officer punch § 87(2)(b) in the chest and never saw an officer raise a radio as if to strike § 87(2)(b).

Officers not Interviewed

At the time of § 87(2)(b)'s arrest, Det. Santiago Frances of the 75th Precinct detective squad had an I-Card out for § 87(2)(b) in regards to an domestic violence complaint filed by § 87(2)(b) against § 87(2)(b) (Encl. 9F-G). When § 87(2)(b) was taken to the 75th Precinct by the warrant squad, Det. Frances arrested him in regards (Encl. 9J). It is undisputed that Det. Frances was not present for or involved in the apprehension of § 87(2)(b) at § 87(2)(b) and was therefore not interviewed.

Medical Records

§ 87(2)(b)'s Medical Treatment of Prisoner form (Encl. 8A), filed on September 20, 2011, notes that he had a "bruise/scrape" on his right eye and a scrape on his right shoulder.

§ 87(2)(b)'s Pre-arraignment Screening form (Encl. 8B-C), filed on September 20, 2011, notes that he had a "minor abrasion" to his ear.

§ 87(2)(a) PHL § 18(6)

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b) claiming injuries resulting from the actions of NYPD officers (Encl. 5E). As of April 19, 2012, no 50-H hearing has been scheduled or conducted.

Civilian(s) Criminal History

- [illegible]

Civilian(s) CCRB History

- This is the first CCRB complaint involving § 87(2)(b) or § 87(2)(b) (Encl. 2D-E).

Subject Officer(s) CCRB History

- Sgt. Raymond Tomins has been a member of the service for nineteen years and there are no substantiated CCRB allegations against him (Encl. 2A):
- Det. Richard Schneider has been a member of the service for nine years and there are no substantiated CCRB allegations against him (Encl. 2B):

- Det. Nicholas Grenier has been a member of the service for eight years and there are no substantiated CCRB allegations against him (Encl. 2C):

Conclusion

Identification of Subject Officer(s)

- § 87(2)(b) stated that the first officer to find and approach him, whom he described as an approximately 5'7" or 5'8" tall, 190 to 200 pound white male in his 30s, pulled him to the ground and spoke to him discourteously during his arrest. Further, he stated that the officer punched him in the chest once he was transported to the prisoner van and raised his radio above his head, in a motion that § 87(2)(b) interpreted as a threat to strike him with the radio. Det. Schneider, who fits the description given by § 87(2)(b) acknowledged having been the first officer to find § 87(2)(b) and having used force. Allegations of physical force, discourtesy, and threat of force have been pleaded against Det. Schneider.
- § 87(2)(b) stated that the second officer involved in his apprehension, whom he described as an approximately 6'3" tall, 225 to 300 pound white male in his mid-30s with a heavyset but muscular build, had his gun drawn while approaching him and spoke to him discourteously. Sgt. Tomins, who most closely matches § 87(2)(b)'s description, acknowledged having been the second officer in § 87(2)(b)'s apprehension. Gun drawn and discourtesy allegations have therefore been pleaded against Sgt. Tomins.
- § 87(2)(b) alleged that an officer struck him in the shoulder with a baton during his arrest. Three officers, Det. Schneider, Sgt. Tomins, and Det. Grenier acknowledged having been involved in apprehending § 87(2)(b). Det. Schneider and Sgt. Tomins denied having struck § 87(2)(b) with batons. Det. Grenier acknowledged having struck § 87(2)(b) with his baton during his apprehension. A physical force allegations has therefore been pleaded against Det. Grenier.

Investigative Findings and Recommendations

Allegation A – Force – Det. Richard Schneider used physical force against § 87(2)(b)

Allegation E – Force – Det. Nicholas Grenier struck § 87(2)(b) with a baton.

§ 87(2)(b) stated that he was in the basement of § 87(2)(b) when he heard that when heard that someone was looking for him. Knowing that there was a warrant out for his arrest, he made his way towards the exit to the backyard. Det. Schneider came into the basement at this time, ran after § 87(2)(b) and pushed him to the ground. Other officers joined Det. Schneider and they attempted to handcuff him. § 87(2)(b) admitted that he was moving his body, attempting to get away from the officers because they had him in an uncomfortable position while attempting to handcuff him. An officer struck him with a baton on the shoulders and the officers managed to eventually handcuff him. All of the officers stated that, contrary to § 87(2)(b)'s statement, he was arrested in the backyard of the house beside § 87(2)(b) not in the basement of § 87(2)(b). Det. Schneider stated that, when he found § 87(2)(b) he and Sgt. Tomins attempted to handcuff him but he stiffed his arms and refused to let the officers pulled it back. In the process pulling his arms back, they all fell to the ground. Det. Grenier stated that, when he first saw § 87(2)(b) he was struggling with Det. Schneider and Sgt. Tomins, refusing to give them his arms. He proceeded to strike him in the leg with a baton to attempt to get him to the ground.

§ 87(2)(g)

It is undisputed that § 87(2)(b) was wanted on a warrant, was away of this, and attempted to flee, either by exiting the basement of § 87(2)(b) as in his account, or by jumping out of a window and hiding in a nearby backyard, as in the account of the officers.

It is also undisputed that § 87(2)(b) resisted the officers attempts to handcuff him.

Penal Law Section 35.30 (Encl. 1A-B) states that an officer, in the course of effecting an arrest, “may use physical force when and to the extent he reasonably believes such to be necessary to effect the arrest.”

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

It is therefore recommended that **Allegations A and E** be **Exonerated**.

Allegation B – Abuse of Authority – Sgt. Raymond Tomins drew his gun.

§ 87(2)(b) stated that when he first saw Sgt. Tomins, he had his gun drawn. Sgt. Tomins, promptly holstered the gun.

NYPD v. Gliner, OATH Index No. 955/00 (Sept. 6, 2000) (Encl. 1C-U) established a broad standard for the acceptable drawing and point of a firearm, stating that an officer is allowed to do so as long as he or she has a reasonable fear for his or her own or another person’s safety.

Sgt. Tomins denied having drawn his gun during this incident and no officer saw him do so. § 87(2)(g)

It is therefore recommended that **Allegation B** be **Exonerated**.

Allegation C – Discourtesy – Det. Richard Schneider spoke obscenely and/or rudely to § 87(2)(b)

Allegation D – Discourtesy – Sgt. Raymond Tomins spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(b) alleged that Det. Schneider and Sgt. Tomins, spoke to him discourteously during his arrest, calling him, amongst other things, a “motherfucker” on multiple occasions. Det. Schneider denied having spoken discourteously in any way to § 87(2)(b). Sgt. Tomins stated that it was possible he may have told § 87(2)(b) to “get the fuck down,” though he did not specifically recall having done so, he denied having called him a “motherfucker.” § 87(2)(g)

It is therefore recommended that **Allegations C and D** be **Unsubstantiated**.

Allegation F – Force – Det. Richard Schneider used physical force against § 87(2)(b)

§ 87(2)(b) stated that once he was brought to the prisoner van he refused to enter the van unless he was given more clothes. He alleged that Det. Schneider punched him in the chest as a result. Det. Schneider denied this and all other officers denied having seen this. § 87(2)(g)

It is therefore recommended that **Allegations F** be **Unsubstantiated**.

Team: 5

Investigator:	_____	<u>Alexander Opoku-Agyemang</u>	<u>June 29, 2012</u>
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date